

10.	23CV1955	SYNCHRONY BANK VS. TRICIA D. HAMERTON
MOTION FOR ENTERING JUDGMENT		

This matter was continued from August 7, 2026. The tentative ruling issued on August 7, 2026, denied Plaintiff's, Synchrony Bank ("Plaintiff"), Motion for Entering Judgment Pursuant to Defendant's Default Under Settlement and Release Agreement due to defective service. On August 7, 2026, a Proof of Service was filed indicating service was effectuated by mail on the same date.

Plaintiff seeks to enter judgment in favor of Plaintiff and against Defendant, Tricia Hamerton ("Defendant"), due to Defendant's default of the settlement agreement. No opposition has been filed. Pursuant to the Settlement and Release Agreement (the "Settlement Agreement"), the Parties agreed Defendant owed a principal balance of \$4,847.07 and court costs incurred by Plaintiff. The Parties agreed Plaintiff would pay the total amount of \$2,666.00 as a full and final settlement in the installment payments of \$112.00 per month. Should Defendant default, Plaintiff may immediately file motion to seek entry of judgment for the balance due less credit for any payments received, plus court costs associated with filing and serving the action and any motion to obtain judgment. The Settlement Agreement provided that the Court would retain jurisdiction pursuant to Code of Civil Procedure § 664.6 to enforce the terms of the agreement.

Plaintiff alleges as of the date of its declaration, Defendant should have paid \$6,940.00; however, Plaintiff has received zero payments. Plaintiff accordingly seeks to enter judgment in the amount of \$5,235.77, comprised of a principal balance of \$4,847.07 and \$388.70 for costs associated with filing and serving the Complaint and underlying motion.

TENTATIVE RULING #10:

PLAINTIFF'S MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER THE SETTLEMENT AND RELEASE AGREEMENT IS GRANTED. JUDGMENT SHALL BE ENTERED AGAINST DEFENDANT IN THE AMOUNT OF \$5,235.77, COMPRISED OF THE OUTSTANDING BALANCE (\$4,847.07) AND COSTS (\$388.70).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.